

IN THE SUPREME COURT OF INDIA

Dr. Ananya Sharma vs Union Of India & Ors. ... on 5 May, 2023

[2023] 4 SCR 710, (2023) 6 SCC 301

Bench: D.Y. Chandrachud, CJI and P.S. Narasimha, J.

JUDGMENT

D.Y. Chandrachud, CJI

1. The petitioner has invoked the extraordinary jurisdiction of this Court under Article 32 of the Constitution of India challenging statutory notifications regulating digital privacy and surveillance disclosures. The petitioner contends that the impugned directives violate the fundamental right to privacy under Article 21 and freedom of expression under Article 19(1)(a) of the Constitution.

2. Mr. Kapil Sibal, learned Senior Counsel appearing for the petitioner, submitted that mandatory data localization without judicial oversight fails the four-pronged proportionality standard. He submitted that arbitrary executive interception violates the principles of natural justice and procedural due process under Article 14 and Article 21 of the Constitution of India.

3. The petitioner placed reliance on the nine-judge bench judgment reported in (2017) 10 SCC 1 in the case of Justice K.S. Puttaswamy v. Union of India, which recognized privacy as an intrinsic part of the right to life and personal liberty under Article 21. Reliance was also placed on the decision reported in (2020) 3 SCC 637 in the case of Anuradha Bhasin v. Union of India regarding internet restrictions.

4. The learned Solicitor General of India, Mr. Tushar Mehta, defended the notification, submitting that the measures fall squarely within reasonable restrictions under Article 19(2) in the interests of national security and prevention of cyber terrorism.

5. We have evaluated the constitutional claims. While the State possesses legitimate interests in preventing cross-border cyber threats, any restriction on Article 21 must satisfy the tests of legality, legitimate aim, proportionality, and procedural safeguards.

6. The writ petition under Article 32 of the Constitution is accordingly disposed of with directions to establish an independent oversight committee.

P.S. Narasimha, J. - I agree.